

BACKGROUND GUIDE



I. Letter from the Executive Panel

It gives me immense pleasure to welcome you all to this Mock Conference. Though this is a practice session, I hold very high hopes for what it represents. I have witnessed the enthusiasm and potential of our new members, alongside the dedication of our current ones, and I truly believe that together, you can elevate our club to greater heights and pave the way for the future of SECMUN.

This event is not only a learning opportunity but also a chance to build confidence and strengthen your voice. As a Senior Secretariat, it is our motivation to create such platforms because we believe in your ability to grow, inspire, and lead.

The agenda chosen for this session– Addressing Systemic Caste-Based Discrimination and the Crisis of Violence Against Marginalised Communities– is one of deep relevance and urgency. It has been carefully drafted to encourage critical thought and constructive dialogue. Engaging with such issues will not only refine your debating skills but also expand your understanding of justice and the role of diplomacy in addressing social realities.

To all beginners, I would like to emphasise that this is the beginning of your MUN journey. Mistakes are welcome, questions are encouraged, and growth is guaranteed. May this experience set the tone for the many conferences you will take part in, and may you step forward with courage and clarity.

On behalf of the Senior Secretariat, I wish you all the very best. May this session be an enriching and inspiring one.

*~Naphibansabet Byrsat,
President*

Dear Delegates,

I extend my warmest welcome to the inaugural session of the **Joint Consultative Forum on Atrocities and Accountability (JCFAA)**. You have been selected for this unique simulation because the crisis before us, i.e. the systemic caste-based atrocities – an agenda that is too complex for any single, traditional committee to resolve. You are not merely delegates; you are negotiators tasked with bridging the gap between the universal human rights demanded by the international community and the political realities of a sovereign state.

The Agenda, "**Addressing Systemic Caste-Based Discrimination and the Crisis of Violence Against Marginalised Communities**," is one of great moral weight. This background guide provides the necessary foundation, but it should not be used as a substitute for your independent research. You must research the history of anti-discrimination laws, judicial mechanisms, and the political will (or lack thereof) to enforce them.

Remember, the quality of this Forum rests entirely on your preparation. Maintain a highly diplomatic approach, focus on well-researched and executable policy points, and be prepared to compromise to achieve a resolution that has the legitimacy of both international law and domestic consensus. We look forward to a challenging, productive, and meaningful debate.

Sincerely,

~Sambuddha Das,
Chairperson, JCFAA

To the Distinguished Delegates of the Joint Constructive Forum on Atrocities and Accountability,

We, the Executive Panel, welcome you to this critical session of the Joint Constructive Forum on Atrocities and Accountability. You have been convened to address one of the most urgent and entrenched human rights crises: "Addressing Systemic Caste-Based Discrimination and the Crisis of Violence Against Marginalised Communities."

This Forum is a unique experiment, blending the international mandate of the UN Human Rights Council with the domestic political realities of an All India Political Parties Meet, all within a dynamic Crisis Committee structure. You are therefore called upon to operate on three fronts simultaneously. As the global conscience, you will uphold international law and draft resolutions. As national political leaders, you will navigate the complex terrain of electoral politics and implementation. And as first responders, you will be tested by real-time crises requiring immediate directives to prevent further violence and instability.

Your success hinges on your ability to synthesise these roles. We expect more than debate; we demand actionable outcomes. The world requires not just condemnation but viable solutions—whether through swift crisis directives, principled resolutions, or groundbreaking political accords. The victims of this systemic injustice cannot afford delay. The time for constructive and decisive action is now.

Sincerely,

~Sneha Das
Rapporteur, JCFAA

II. Introduction to the Forum, Mandate, and Powers

A. The Joint Consultative Forum (JCFAA)

The JCFAA is a **simulated, ad-hoc, hybrid committee** established to address a national accountability agenda that has escalated to the level of international concern regarding non-derogable human rights norms. Its composition deliberately creates a nexus between two distinct, often conflicting, regulatory domains:

1. **The International Arm (UNHRC Mandate):** Focuses on the systematic review, adherence to core human rights conventions, and the application of international monitoring mechanisms to eliminate discrimination based on descent.
2. **The Domestic Arm (AIPPM Mandate):** Focuses on expediting legislative and judicial reforms, resource allocation, and overcoming internal **institutional resistance** necessary to translate protective law into tangible on-the-ground justice.

B. Mandate and Hybrid Powers

The JCFAA possesses a unique, dual mandate that grants its final resolution **de facto executability** within the simulated domestic system, empowering it with unprecedented weight:

- **UNHRC Mandate:** To ensure compliance with the **International Convention on the Elimination of All Forms of Racial Discrimination (ICERD)** and its binding interpretations concerning descent-based discrimination (DBD). The mandate includes recommending the involvement of specialised UN mechanisms to address the systemic **accountability deficit**.
- **AIPPM Mandate:** To formulate and endorse immediate, politically feasible reforms—including amendments to the **Criminal Procedure Code** and appropriations bills—designed to bypass typical bureaucratic obstructions and mobilise the necessary political will to enforce domestic anti-atrocity legislation.

The Power of the JCFAA: The ultimate resolution of the JCFAA is designed to carry the simultaneous endorsement of both the global human rights community and the domestic political apparatus, making its directives immediately enforceable upon consensus.

C. Procedural Guidelines

I. The Dais

The committee is led by the **Dais**, consisting of:

- **Chair:** The presiding officer who enforces rules, recognises delegates, and rules on points and motions.
- **Rapporteur:** Manages roll call, timing, notes, and administrative tasks.

II. Points and Motions

Delegates guide the flow of debate through points and motions. To speak, you must raise your placard and be recognised by the Chair.

Type	Purpose	Requires a Second?	Interrupts Speaker?	Vote Required?
Point of Personal Privilege	To address a comfort or audibility issue (e.g., "The delegate [Your Portfolio] cannot hear the speaker.")	No	Yes	No
Point of Order	To point out a procedural error made by the dais or a delegate.	No	Yes	No (Chair's ruling is final)
Point of Parliamentary Inquiry	To ask the dais a question about the rules of procedure.	No	No	No
Motion to Set/Adopt the Agenda	To decide which topic will be debated first.	Yes	No	Simple Majority

Motion to Open the Speakers' List	To open the primary list for speakers.	Yes	No	No (Chair's discretion)
Motion for a Moderated Caucus	For a focused, time-limited debate on a specific sub-topic.	Yes	No	Simple Majority
Motion for an Unmoderated Caucus	For informal lobbying and drafting (e.g., to write clauses).	Yes	No	Simple Majority
Motion to Suspend Meeting	To take a short break (e.g., for lunch).	Yes	No	Simple Majority
Motion to Adjourn Meeting	To end the committee session.	Yes	No	Simple Majority
Motion to Table Debate	To postpone debate on the current topic/draft resolution.	Yes	Yes (For & Against)	Simple Majority
Motion to Close Debate	To end all debate on the current topic and move to voting.	Yes	No	Two-Thirds (2/3) Majority

How to Make a Motion for a Moderated Caucus:

You must state: "**Total Time**," "**Individual Speaker's Time**," and "**Purpose**."

Example: "Honourable Chair, the delegate of [Your Portfolio] motions for a 10-minute moderated caucus with a 45-second speaking time per delegate for the purpose of discussing [sub-agenda/topic]"

III. Flow of Debate

A typical MUN session follows the following structure:

1. **Roll Call:** The Rapporteur calls the roll. Delegates respond "**Present**" or "**Present and Voting**" (meaning you cannot abstain on substantive votes).
2. **Setting the Agenda:** The dais presents the topics. A motion is made to set the agenda. There may be a brief debate and a vote to decide which topic is debated first.
3. **General Speakers' List (GSL):** The primary list for formal debate on the topic. Delegates are added by raising their placards when the dais opens the list.
4. **Caucusing:** The core of committee work.
 - o **Moderated Caucus:** Fast-paced, focused debate. The Chair calls on delegates who raise their placards.
 - o **Unmoderated Caucus:** Informal time for delegates to form blocs, merge ideas, and draft documents.
5. **Introduction of Draft Resolutions:** The main submitter(s) of a draft resolution are recognised to read the operative clauses aloud and answer points of inquiry.
6. **Formal Introduction of Amendments:**
 - o **Friendly Amendment:** Supported by all main submitters; incorporated automatically.
 - o **Unfriendly Amendment:** Challenged by a main submitter; debated and voted on by the committee.
7. **Voting Procedure:** A formal session on all draft resolutions and unfriendly amendments.
8. **Adjournment:** The meeting is closed.

IV. Documentation

- **Draft Resolution:** The main substantive document. It states the issues the committee is addressing and proposes concrete actions and recommendations. It requires **signatories** (delegates who wish to see it introduced) and **sponsors** (the main authors).
- **Amendment:** A clause that adds to, deletes, or alters an operative clause of a draft resolution.
- **Directive (or Decision):** A short, action-oriented document used *in a crisis* to respond to a specific event (e.g., "Directive 1.1: Authorise the deployment of human rights monitors to the border region."). It is voted on with a simple majority and takes effect immediately.

V. Voting Procedure

Voting is a formal process conducted by the dais.

1. **Motion to Close Debate** passes with a 2/3 majority.
2. The committee moves into **Voting Procedure**.

3. The dais then conducts a **roll-call vote** on each draft resolution.
4. When your country is called, you may vote:
 - **Yes** (in favour)
 - **No** (against)
 - **Abstain** (no position; not allowed if you stated "Present and Voting")
 - **Yes/No with Rights**: You vote and then are given time to explain your vote.
5. A draft resolution requires a **Simple Majority** (50% + 1) to pass.

A Final Note for Delegates: The most effective delegates are not just great speakers but skilled parliamentarians. Use the rules to your advantage, be active in caucuses, and focus on building consensus through well-written clauses. The goal is to protect and promote human rights through collaborative, decisive action.

D. Evidence or Proof Acceptable in the Forum

Evidence standards must adhere to the highest criteria of diplomatic integrity and factual corroboration, reflective of international fact-finding rigour.

1. **UN Reports:** All reports from UN Bodies (UNSC, UNGA), UN-affiliated bodies (World Bank, IMF), and Treaty-Based Bodies (CERD, ICCPR) are accepted as authoritative, credible information.
2. **News Sources:** Reuters and other non-state-operated international news agencies that provide unambiguous, fact-based reporting relevant to the crisis.
3. **Government Reports:** Reports from Ministries of Foreign Affairs, State Departments, or Permanent Representatives can be used to support or counter a state's position, but **can be denied by other nations** if contradicted by corroborated, independent reporting.
4. **Multilateral Organisations:** Reports from NATO, ASEAN, OPEC, etc., are accepted where relevant to economic or security dimensions of the crisis.

III. Core Agenda and Conflict Analysis

A. The Crisis Premise: Discrimination to Atrocity

The JCFAA must recognise that atrocities—systemic patterns of mass violence and persecution—do not arise in a vacuum but are the inevitable result of the state's pervasive failure to uphold its foundational protective duties, creating a **continuum of violence**.

B. Historical and Contemporary Context

Systemic Caste-Based Discrimination:

Definition Systemic caste-based discrimination refers to a deeply rooted form of social inequality in which individuals or groups face exclusion, marginalisation, and unequal treatment based on their caste identity. Unlike isolated acts of prejudice, this discrimination is embedded within the structures of society — including legal systems, education, employment, healthcare, housing, and political representation — which often result in restricted access to resources, reduced socioeconomic mobility, and violations of fundamental human rights. Caste is a system of rigid social stratification characterised by hereditary status, endogamy, and hierarchical inequality. It is descent-based and hereditary in nature, determined by one's birth into a particular caste, irrespective of the faith practised by the individual. While the most documented system is the **Varna/Jati model in South Asia**, analogous structures exist globally. Dalits have faced a unique discrimination in our society that is fundamentally different from the problems of minority groups in general; the only parallel to the practice of 'untouchability' was Apartheid in South Africa.

Historical Origins (Vedic and Classical Eras)

The caste system's origins emerged during the Vedic Period (~1500–500 BCE). The earliest textual reference is found in the Purusha Sukta hymn of the Rigveda, describing the cosmic being Purusha's body giving rise to a four-fold social hierarchy: Brahmins (priests and teachers), Kshatriyas (rulers and warriors), Vaishyas (traders and agriculturists), and Shudras (laborers). Initially more fluid, the system rigidified significantly during the Classical era. The codification of the **Manusmriti** cemented the birth-based nature of caste, prescribing detailed legal and social punishments and solidifying the oppression of women and lower castes. This legal and religious hardening was complemented by economic policies like land grants, which entrenched the economic power of the dominant classes.

The Colonial Encounter and the Rise of Reform

Colonial rule profoundly transformed the caste system, freezing and reifying a previously fluid social order. The **colonial census**, beginning systematically in 1872, classified and ranked every *jati* (sub-caste), turning the hierarchy into a central tool for administration and political

control. This period saw the rise of powerful anti-caste movements. Dr. B. R. Ambedkar, the preeminent leader of the Depressed Classes, argued for the annihilation of caste. His confrontation with Mahatma Gandhi culminated in the **Poona Pact of 1932**, which replaced separate electorates with a system of reservations within a general electorate, laying the groundwork for India's future affirmative action policy.

Post-Colonial Constitutional Morality

In the post-colonial era, Ambedkar's vision was enshrined in the Constitution of India, which he helped draft. The Constitution undertook a revolutionary project: it **abolished untouchability**, prohibited discrimination, and instituted a comprehensive framework of **reservations** for Scheduled Castes and Scheduled Tribes. The political landscape was further reshaped by the implementation of the Mandal Commission recommendations in the 1990s, extending reservations to Other Backwards Classes, cementing caste-based identity as a central axis of Indian politics and governance.

Crisis of violence against marginalised communities:

Historically, this violence has been systemic, used to consolidate control over land, resources, and labour. In the contemporary context, the crisis has adapted: it manifests in majoritarian nationalism, where violence against minorities is incited to consolidate power. Violence against India's marginalised communities is multifaceted, including public lynchings, gang rapes, arson attacks, and social boycotts, often perpetrated with impunity. A critical dimension is the systemic failure of the justice apparatus, which allows powerful local interests to operate with calculated impunity.

C. The Crisis Trigger

In MUNs, a crisis is a dynamic, fast-paced simulation where delegates are thrust into a rapidly evolving fictional or historical scenario. The "crisis" itself is not the broad topic but the series of specific, unexpected events that unfold in real-time, such as a military coup, an economic collapse, or a public scandal. Unlike traditional committees that focus on drafting lengthy resolutions, crisis committees require delegates to respond immediately through two primary channels: public directives—short, action-oriented documents produced in formal session—and private crisis notes, which are clandestine orders sent to the crisis staff to conduct espionage, forge alliances, or execute secret manoeuvres.

The ultimate goal in a crisis committee is often competitive, centred on gaining power and achieving victory. Each delegate represents a specific portfolio or character with unique resources and hidden personal objectives, such as becoming the leader of a nation or amassing vast wealth. Success is measured not by consensus-building but by a delegate's ability to skilfully manipulate the unfolding

narrative, leverage private actions, and outmanoeuvre rivals within the committee to achieve their goals amidst the chaos.

D. The Core Conflict: Sovereignty vs. Accountability

The debate between the UNHRC and the AIPPM centres on the fundamental tension between national sovereignty and international human rights accountability—specifically, whether systemic State failure mandates external monitoring.

Arguments for Domestic Jurisdiction (AIPPM/State Position)

The traditional defence of national sovereignty relies on the UN Charter, Article 2(7), which stipulates that the UN should not intervene in matters "essentially within the domestic jurisdiction of any state". The AIPPM views the issue of caste violence as a challenge of internal law enforcement and social reform, asserting that India's constitutional and legislative framework is fundamentally sufficient to address the problem.

The State highlights its comprehensive legal structures: constitutional abolition of untouchability, stringent, specialised legislation (PoA Act), dedicated National Commissions (NCSC/NCST), and a vibrant democracy where Dalit leaders have reached the highest political functions. Diplomatically, India has expressed high regard for UN mechanisms like the UPR. However, the State has historically resisted specialised international scrutiny, arguing that attempts by Special Rapporteurs to extend their mandate to caste groups constitute an overreach because their mandate covers "national, or ethnic, religious minorities" but not caste. This resistance is underpinned by the view that caste is an issue "enclosed within religion and internalised to Hinduism and the Indian nation," thus making it a purely domestic concern. This resistance is not purely legal; the institutional composition of the diplomatic service and related academia, often reflecting upper-caste demographics, makes the internationalisation of caste an uncomfortable political reality, preferring to treat it as a "forgotten reality" in international relations discourse.

Arguments for International Monitoring and Accountability (UNHRC Position)

The UNHRC's position is that when human rights violations are systematic, pervasive, and demonstrably involve State institutional failure, the issue transcends domestic jurisdiction and becomes a matter of universal concern. The argument for accountability rests on three pillars:

1. State Failure Threshold: The most compelling evidence against the domestic jurisdiction defence is the documented institutional failure. The NHRC's designation of law enforcement as the "greatest violator" and the persistent allegations of police complicity in coordinated attacks [Agenda] suggest that the State apparatus itself is compromised in its ability and willingness to protect marginalised communities. International law supports monitoring when the State fails in its fundamental obligation to protect its citizens from mass violations.

2. Universal Obligation via DBD: By successfully framing caste as Descent-Based Discrimination (DBD), the UNHRC establishes that the issue falls under existing international treaty obligations, placing it firmly within the mandate of international human rights review.

3. Lack of Political Will and Transparency: UN human rights experts have noted an alarming trend of attacks on minorities and civil society. Furthermore, despite formal engagement, the government's low level of responsiveness to communications from UN human rights experts (**18 replies out of 78 sent over five years**) indicates institutional opaqueness, hindering genuine monitoring and collaboration.

The UNHRC must argue that the current crisis is not a temporary lapse in law enforcement, but a systemic breakdown of State protections that allows powerful local interests to operate with calculated impunity. This institutional compromise renders the domestic justice system incapable of self-correction without external pressure or monitoring.

IV. Conceptual and Legal Frameworks

A. Key Terminology

To ensure clarity and rigour in the debate, delegates must operate with a precise understanding of the following concepts:

Term	Definition and Context	Relevance to JCFAA
Atrocity Continuum	The concept that systemic patterns of mass violence and persecution do not arise suddenly but are the inevitable result of a state's pervasive, functional failure to uphold protective duties over time.	Frames the crisis as a predictable consequence of institutional collapse and failure of accountability, not a single event.
Descent-Based Discrimination (DBD)	Discrimination based on inherited status (often referred to as caste discrimination) affects over 260 million people worldwide . It results in profound exclusion across political, social, and economic spheres.	International law confirms DBD falls under " racial discrimination " (CERD General Recommendation 29), making it a non-derogable human rights violation subject to international scrutiny.
Institutional Impunity	A systemic condition where state actors (police, judiciary, bureaucracy) actively or passively enable crimes by failing to investigate, prosecute, or enforce protective laws.	The primary driver of the crisis. It manifests as the " FIR Barrier, " judicial delays, and the functional collapse of the witness protection scheme.

Accountability Deficit	The gap between protective domestic law (Prevention of Atrocities Act) and the actual outcome (low conviction rates, high pendency), rooted in the lack of independent oversight and political will.	The core challenge the JCFAA must address is through mandatory structural and resource reforms .
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B. Foundational International Law (Frameworks and Treaties)

The UNHRC Arm of the JCFAA is legally bound by the following instruments, which constitute the universal standard for non-discrimination:

1. **International Convention on the Elimination of All Forms of Racial Discrimination (ICERD, 1965)**
 - **Binding Interpretation: CERD General Recommendation No. 29 (2002)** confirms that discrimination based on '**descent**' falls squarely under the purview of "racial discrimination" (Article 1, Paragraph 1). This interpretation is *binding* on signatory states.
 - **Mandate: Article 6** requires State Parties to ensure effective protection and remedies, including legislative and judicial recourse, against all acts of racial discrimination.
2. **Draft Principles and Guidelines for the Effective Elimination of Discrimination based on Work and Descent (OHCHR)**
 - **Status:** While non-binding, these principles serve as the **authoritative roadmap** and comprehensive policy framework derived from existing ICERD obligations. They dictate the necessary scope of domestic legislative reforms.
3. **Diplomatic Correction:** The resolution often mistakenly cited in advocacy materials, **A/HRC/RES/23/26**, is definitively *unrelated* to descent-based discrimination, concerning the human rights situation in Syria. Delegates must reference **CERD General Recommendation 29** as the primary legal authority for DBD.

C. Domestic Legal Landscape (Simulated Context and Necessary Amendments)

The AIPPM Arm must focus on repairing the functional failures of the domestic legal system, specifically:

1. The Domestic Implementation Crisis (A Failure of Law Enforcement)

Implementation Metric	Context / Legal Mandate Violated	Structural Implication
FIR Barrier	Police are legally prohibited from conducting preliminary inquiries before registration. Persistent institutional resistance violates the right to speedy justice.	De facto Impunity at the enforcement level. Victims are denied immediate entry into the criminal justice system.
Judicial Delays	The protective law stipulates time-bound trials (e.g., within 60 days). Cases routinely drag on for years due to administrative delays and a lack of judicial accountability.	Blatant violation of the right to speedy justice, leading to witness vulnerability and eventual acquittals.
Investigation Pendency	Backlogs are severe (e.g., approximately 17,166 cases pending investigation by the end of 2022).	Failure of timely investigation undermines the integrity of evidence before it even reaches trial.
Conviction Rate	Chronically low, dropping to 32.4% in 2022 (down from 39.2% in 2020).	Reflects systemic failure in evidence collection, a lack of witness protection, and deep-seated societal biases within the judicial process.

2. Necessary Amendments and Legislative Directives (AIPPM Focus)

The final resolution must include specific legislative mandates to overcome institutional resistance:

- **Mandatory FIR & Suspension:** Introduce a statutory clause that automatically triggers a **non-appealable suspension** of any public servant who refuses to register an atrocity case, recognising such negligence as a crime of perpetration.
- **Judicial Specialisation:** Mandate the establishment of designated **Exclusive Special Courts** with a strict statutory time limit of **6 months** for trial completion.
- **Land Grabbing Reversal:** Introduce a fast-track land dispute mechanism that **reverses the burden of proof** in cases of suspected Land Alienation/Grabbing where official complicity is alleged.

V. Current Global and Domestic Situation

A. Current Global Context: Descent-Based Discrimination

Descent-based discrimination (DBD) is a pervasive and deeply entrenched form of inequality where an individual's social status, rights, and opportunities are predetermined by their lineage, birth, or perceived inherited status. Unlike discrimination based on race or ethnicity alone, DBD is characterised by rigid, hierarchical social systems that are historically rooted and culturally sanctioned.

The characteristics of DBD are extensive, involving systematic human rights deprivations such as:

- Inability or restricted ability to alter inherited status.
- Socially enforced restrictions on marriage outside the community.
- Private and public segregation in housing, education, access to public spaces, and public sources of food and water.
- Limitation of freedom to renounce inherited occupations or degrading or hazardous work (e.g., manual scavenging and disposal of dead animals).
- Subjection to dehumanising discourses referring to pollution or untouchability.

Globally, several communities have been facing DBD, but in the contemporary context, globalisation has exported DBD, wherein diaspora communities in the UK, US, Canada, and the Gulf states now report caste discrimination in workplaces, universities, and social settings, forcing host countries to grapple with a form of prejudice not fully covered by existing racial equality laws. Furthermore, the shift to digital economies has created new forms of exclusion. Marginalised descent-based communities often lack access to infrastructure, skills, and financial services, widening the socioeconomic gap and locking them out of online education, e-governance, and remote work opportunities. Women and girls from these groups face a "double discrimination" and are at higher risk of gender-based violence, human trafficking, and exploitation while having lower literacy rates and less access to sexual and reproductive healthcare.

Internationally, caste systems and analogous systems of inherited status are recognised by the UN as a form of "discrimination based on descent" (DBD). This classification is vital, as it integrates the issue of caste into the established framework of international human rights law. The difficulty in categorising caste discrimination into standard categories of human rights violations has forced Dalit activists into comparing caste discrimination with racial discrimination – a highly condemned practice in international law. This strategy materialised through the word 'descent' in Article 1 of the ICERD. Currently, caste discrimination has become important on the human rights agenda under the guise of 'discrimination based on work and descent' (dwd), and by extension, 'racial discrimination'.

In India, descent-based discrimination is institutionalised through the caste system, a complex, millennia-old social hierarchy. One's caste, or *jati*, is determined by birth and dictates social status, occupation, and spiritual purity. At the very bottom of this hierarchy are the Scheduled Castes (SCs), often referred to as Dalits (meaning "broken/scattered" in Sanskrit) and historically termed "untouchables." Concerning more formalised clusters, a distinction is made between 'Forward' castes (usually Brahmins and other propertied communities) and 'Backwards' Classes (BCs), and Scheduled Castes and Scheduled Tribes (SCs and STs). As Reddy explains, 'Backwards' has been used as a descriptor of educational and economic backwardness (identifying all those in need of special treatment) as well as caste backwardness to signify an intermediary status between 'Forward' communities and 'Untouchables', but also as a synonym for 'Untouchables'. It has a very specific meaning in local contexts, but is 'vague and unprecedented' at the national level, unassociated with official or unofficial definitions.

More than 30 percent of Indians are excluded from the *savarna* system: tribal communities and groups (8.6 percent of the Indian population according to the 2011 Indian census) and castes with ranked, sub-caste divisions traditionally classified as Avarna or 'Outcaste' (over 25 percent of the Indian population), including agrestic slaves and those forced to carry out jobs such as the disposal of human waste and dead animals. 'these groups were considered Untouchable and could not walk on the main streets or enter Hindu temples, were not allowed to draw water from wells used by caste Hindus, were not allowed to obtain education, and had restrictions regarding clothing styles, jewellery, houses, and which transportation they could use.

While overt atrocities—such as violence, social boycotts, and the persistent scourge of manual scavenging—continue to terrorise Dalit communities, the discrimination has evolved. It has migrated into modern spheres, manifesting as social exclusion in urban housing, coded bias in corporate offices and elite universities where "merit" becomes a smokescreen for prejudice, and segregated networks in the digital world. The private sector, devoid of affirmative action, reflects stark underrepresentation, and grassroots Dalit political leaders often face violent resistance. This is compounded by police apathy, judicial delays, and a frequent lack of political will to enforce laws stringently. In response, a powerful new wave of Dalit assertion has emerged through digital activism, political consolidation, and cultural movements that publicly reclaim identity and history.

B. Simulated Domestic Case Studies

Case Study 1: The Tech Park and the Unspoken Code

Context: "Innovate Tech Solutions," a prestigious multinational IT company in Bengaluru, prides itself on its meritocratic and modern culture. The workforce is diverse, with employees from across India.

The Incident: Ankur (name changed), a bright and talented Dalit engineer from a top-tier university, was hired through the campus placement drive. Initially, his

performance reviews were excellent. However, after a team dinner where a colleague casually asked about his surname and hometown—a common proxy for ascertaining caste—the workplace dynamics shifted. Ankur found himself gradually excluded from informal coffee chats and after-work gatherings. He was no longer included in crucial email chains for new projects. During a major project, his technical suggestions were repeatedly dismissed in meetings, only to be praised when the same points were later made by a colleague from a dominant caste. When a promotion opportunity arose, Ankur was passed over in favour of a less experienced colleague. The manager's feedback was vague, citing a need for "better team fit and softer skills."

Key Issues:

- **New-Age Casteism:** Covert, social exclusion replacing overt untouchability.
- **Biased Evaluation:** Use of subjective criteria like "team fit" to mask caste-based discrimination.
- **Lack of Redressal:** The company's HR department has no policy or sensitivity training to address caste-based harassment, viewing it as a "social issue" outside their purview.
- **Economic Impact:** Direct impact on career progression and earnings in the high-growth private sector, where reservations do not apply.

Case Study 2: The Price of Love: Caste, Gender, and Honour in a Changing India

Context: The semi-urban town of "Devgarh" is experiencing rapid change. Malls and coaching centres have proliferated, and young people now have access to smartphones and social media. However, beneath this modern facade, the rigid caste structure remains deeply entrenched, and the control over women's sexuality and marital choices is seen as central to maintaining caste "purity" and community "honour."

The Incident: Anjali Kumari (19), a bright and ambitious Dalit girl from a low-income family, had just secured admission to a prestigious nursing college in a nearby city. Her family, though poor, had supported her education, seeing it as a path to a stable government job and a better life. To prepare for the competitive entrance exam, she attended a private coaching institute in town.

There, she met and fell in love with Rohan Singh (21), a boy from a dominant, land-owning caste. Their relationship was mostly digital, conducted through private messages and occasional meetings. They believed their love could transcend the ancient barriers of caste. When Anjali's family discovered the relationship, they were terrified. They warned her of the dire consequences, fearing violent reprisals from Rohan's family and social ostracization from their own community. They pressured her to end it, prioritising her safety and their social standing.

Meanwhile, Rohan's family discovered the news. Their reaction was one of fury and perceived humiliation. The idea of their son, the heir to their land and "lineage," being with a Dalit girl was an unbearable stain on their family's "honour." Rohan was placed under house arrest, his phone confiscated. His father and uncle convened a

meeting of their caste *biradari* (community council), which condemned the relationship and pressured the family to "resolve" the issue.

Defying both families, Anjali and Rohan decided to elope. They managed to get to the district court to register their marriage under the Special Marriage Act. However, before they could complete the process, they were tracked down by Rohan's uncle and cousins. The couple was forcibly separated.

The Aftermath:

- **For Anjali:** She was dragged back to her home. The next day, her body was found in a nearby field. The police registered a case of suicide. However, neighbours reported hearing loud arguments and screams from her house the night before. Anjali's family, under intense pressure from the dominant caste community and fearing for their lives, did not contest the suicide narrative. The case was quickly closed.
- **For Rohan:** He was severely beaten by his male relatives and confined to his home. The family began arranging his immediate marriage to a girl from their own caste to "settle" him and reassert their social standing. He was told Anjali had "run away with someone else."

Key Issues for Analysis:

- **Intersectional Discrimination:** Anjali's identity as a **Dalit woman** placed her at the highest risk. She faced discrimination and control from three sides: the dominant caste (for "daring" to love one of theirs), her own community (for bringing "trouble"), and the patriarchal structures of both communities that sought to control her choices. **Honour" as a Tool of Caste Patriarchy:** The concept of "honour" (*izzat*) is intrinsically linked to controlling women's sexuality to maintain caste boundaries. The dominant caste's violence was motivated by the need to punish the transgression of caste endogamy.
- **Failure of State Machinery:** The police's quick acceptance of the "suicide" theory, despite circumstantial evidence, reflects a common pattern of collusion or apathy in cases involving powerful, dominant castes. The Special Marriage Act, designed to protect such couples, failed in its implementation.
- **Economic and Social Vulnerability:** Anjali's family's economic and social vulnerability made them unable to protect her or seek justice, demonstrating how poverty amplifies the risk for marginalised communities.
- **The Modern vs. The Traditional:** The case highlights the conflict between the modern aspirations of the youth (education, love marriage, urban mobility) and the brutal enforcement of traditional caste and gender norms.

VI. Operational Mandates and Solutions

The final resolution of the JCFAA must synthesise the following AIPPM political will directives and UNHRC accountability standards:

A. The AIPPM Domestic Response: Emergency Implementation

1. **Model Legislative Framework:** Promote a standardised model national atrocity prevention act that explicitly incorporates the **CERD General Recommendation 29** definition of discrimination, establishing a unified legal basis for protection.
2. **Mandatory FIR & Suspension:** Introduce a statutory clause that automatically triggers an **investigation and non-appealable suspension** of any public servant found to have refused to register an atrocity case (**FIR Barrier**) or willfully obstructed the investigation, recognising such negligence as a crime of perpetration.
3. **Judicial Time Limits:** Mandate the establishment of designated **Exclusive Special Courts** with a statutory time limit of **6 months** for trial completion, allowing for limited adjournments, thereby addressing the **Judicial Delay** issue.
4. **Land Grabbing Reversal:** Introduce a fast-track land dispute resolution mechanism for marginalised communities, reversing the burden of proof in cases of suspected **Land Alienation/Grabbing** where official complicity is alleged, addressing the core economic driver of the crisis.

B. The UNHRC International Response: Fact-Finding and Monitoring

1. **Joint Fact-Finding Team (JDFTT):** Establish the JDFTT (composed of international experts vetted by UNHRC and domestic experts vetted by the judiciary) to assess the root causes of the **implementation gap** and provide **Policy and Patterns in Practice Analysis** to the JCFAA.
2. **Capacity Building Mandate:** Allocate UN technical assistance funds to **mandate national police and judicial training institutes** to adopt ICERD General Recommendation 29 into their curricula, focusing on combating institutional bias and ensuring adherence to a rights-based approach.
3. **Protection of Advocates:** The resolution must guarantee the security and full inclusion of non-governmental organisations (NGOs) and human rights defenders, recognising their critical role in early warning, documentation, and assisting victims.

VII. Strategic Questions for the JCFAA Resolution

The success of the JCFAA hinges on the final resolution addressing these intertwined political and legal challenges with robust policy and commitment:

1. **Accountability Threshold:** What specific, demonstrable power must the **Independent Oversight Authority (IOA)** possess—e.g., the power to initiate prosecution against senior district-level officers without executive review—for the UNHRC delegates to credibly **waive the demand for external, unilateral UN monitoring**?
2. **Financial Integrity:** How can the Forum structure the compensation and rehabilitation funds—administered by a **central, non-partisan trust versus state governments**—to ensure fiscal transparency and prevent aid from being politically diverted or misused?
3. **Due Process vs. Speedy Justice:** How can the AIPPM implement a constitutional or statutory amendment that effectively **removes the threat of judicial delay** by restricting the use of delaying tactics (adjournments, stay orders) in atrocity cases while strictly preserving the accused's right to due process?
4. **Dismantling Power Structures:** Beyond mandated representation, what enforceable measures are required to ensure the **political participation** of marginalised communities in local governance (e.g., proportional allocation of economic resources tied to representation) to break the cycle of violence and achieve genuine internal self-determination?
5. **Digital Evidence Standards:** How can the resolution mandate the national criminal justice system to immediately adopt the rigorous, **corroborated evidence standards** (including DDE protocols and gender analysis) used by UN FFM to address the documented 32.4% low conviction rate?

VIII. Further Research and Resources

Key Documents and Treaties:

- Universal Declaration of Human Rights
- ICERD
- Ministry of Home Affairs

Relevant UN Reports and Mechanisms:

- Special Rapporteur on contemporary forms of racism, racial discrimination, xenophobia and related intolerance
- Special Rapporteur on minority issues
- Forum on Minority Issues
- Human Rights Watch/UN Report - "Broken People: Caste Violence Against India's 'Untouchables'" (1999)

Scholarly and NGO Sources (Required Reading):

All the sources mentioned in the workshops were covered.